IN THE IN THE COURT OF LEARNED CHIEF JUDICIAL MAGISTRATE

AT CALCUTTA

Complaint Case No. CS/ of 2026

P.S. – HARE STREET.
SL NO: 1

M/s Cholamandalam Investment and Finance Company Ltd , a company, having its Kolkata office located at Premises No. 5/55/1,CHOWRINGHEEROAD,KOLKATA-700071 and ALSO AT 4th floor, C, Wing, Plot no-C-31&C-32,G Block BKC, Bandra East, Mumbai- Maharashtra- 400051, and ALSO AT Chola Crest, Super B, C54 & C55, 4 Thiru Vi Ka Industrial Estate, Guindy, Chennai -600 032, represented by its Authorised Representative MR. MUKHTAR AHMED.

....Complainant

- Versus -

1. SAI PRAMOD TIRUMALASETTY
DOOR NO 134-1-9/2 MUNUSWAMY NAGAR BEHIND B V R CONVENTION AMARAVATHI ROAD Guntur Andhra Pradesh - 522034

2. VIJAYABHASKARAOTIRUMALASETTY
DOOR NO 4-23-66/2 1ST LINEOPP MEDICAL HOSTELMUTYALA REDDY NAGAR 522007

3. VIJAYAKUMARI TIRUMALASETTY
DOOR NO 134-1-9/2 MUNUSWAMY NAGARBEHIND B V R CONVENTIONAMARAVATHI ROAD 522034

4. SYSPRO TRANSPORT AND ASSOCIATES
DNO- 43-166 PHASE 1-2 ROAD AUTO NAGARNEAR CHANDRA MESSGUNTUR 522007

..... Accused

CHARGE UNDER SECTION 138 OF NEGOTIABLE INSTRUMENTS ACT, 1881 AS AMENDED BY THE BANKING PUBLIC FINANCIAL INSTITUTION AND NEGOTIABLE INSTRUMENT LAWS (AMENDMENT) ACT, 1988 AS AMENDED BY THE NEGOTIABLE INSTRUMENT (AMENDMENT & MISCELLANEOUS PROVISIONS) ACT 2002**AS AMENDED BY THE NEGOTIABLE INSTRUMENTS (AMENDMENT) ORDINANCE, 2015 DATED 15TH JUNE 2015.**

The humble petition of complaint of the Complainant named above most respectfully

S H E W E T H: -

- That the complainant is a company within the meaning of The Companies Act, 1956 and at all material times was engaged in business of financing. The complainant is being represented by its authorized representative MR. MUKHTAR AHMED M/s Cholamandalam Investment and Finance Company Ltd having its Kolkata office located at Premises No. 5/55/1,CHOWRINGHEEROAD,KOLKATA-700071 and ALSO AT 4th floor, C, Wing, Plot no-C-31&C-32,G Block BKC, Bandra East,Mumbai-Maharashtra-400051 and ALSO AT Chola Crest, Super B, C54 & C55, 4 Thiru Vi Ka Industrial Estate, Guindy, Chennai -600 032, and is competent to file and proceed with this complaint before this Ld. Court by virtue of a Letter of Authority. Photocopy of the Letter of Authority is annexed hereto and marked as Annexure “A”.

- That the complainant is one of the largest non-banking financial company in India and for all purposes is engaged in the business of providing finance facility to its customers and has coined a substantial reputation and goodwill in the market.

- That the accused person has been residing and/or carrying on his business from/ at the address(es) as mentioned hereinabove in the cause title.

- The accused persons is borrower in the agreement liable for the liability arising out of loan

- That the accused/s towards full and/or part relinquishment of his/her/their legal debt and/or liabilities in existence issued and made over to the complainant, inter alia, the following cheque/s: -

CHEQUE DATE	CHEQUE NO	DRAWN ON	AMOUNT
07-09-26	910330	INDUSIND BANK	2497808/-
TOTAL			2497808/-

- That the complainant placed the said cheque/s for encashment through its banker, namely **HDFC BANK,** STEPHEN HOUSE BRANCH, KOLKATA- 700001, P.S.– HARE STREET. within its/their validity period. But to the utter shock and surprise of the complainant, the said cheque/s was/were returned dishonoured by the drawee bank with the "**F016-REFER TO DRAWER**" vide respective cheque return memo/s dated **15-09-26**.

- That on receipt of the information of dishonour of the said cheque/s, the complainant issued and sent a demand notice through its **Z.SANWARWALA & CO.** dated **23-09-26** which was duly posted on **24-09-26** at the addresses of the accused/s by speed post with acknowledgement due, in terms of section 138(b) of the Negotiable Instrument Act, 1881 as amended upto date and called upon the accused persons to pay the said sum of within a period of **15 (fifteen) days** from the date of receipt of the said notice.

- That the demand notice addressed to the accused has not been received back by the learned Advocate for the complainant till date. The complainant states that the registered envelope containing the demand notice was properly addressed, prepaid and duly posted by Speed Post. Therefore, in view of **Section 27 of the General Clauses Act, 1897**, a presumption of due service arises, and the said notice shall be deemed to have been duly served upon the accused in the ordinary course of postal business.

- The complainant further states that despite the service/deemed service of the demand notice and the expiry of the statutory period of **fifteen (15) days** from the date of receipt thereof, the accused has failed, neglected and/or refused to make payment of the cheque amount covered by the dishonored cheque. Accordingly, the cause of action for filing the present complaint has arisen.

- The complainant states that the said registered envelope containing the demand notice was properly addressed, prepaid and posted by speed post, hence it shall be deemed that the aforesaid registered notice was duly served upon the accused persons and the service of the same shall be deemed to be effected at the time at which the notice would be delivered in the ordinary course of post. The complainant states that inspite of the service of demand notice and expiry of the stipulated period of 15 days the accused person has failed and neglected to make payment of the sum covered by the said cheque.

- That the complainant respectfully submits that the said cheque was issued by the accused person/s on an account maintained by him/her/them with a banker in discharge of his existing debt or liability towards the complainant. The complainant alleges and/or apprehends and/or states respectfully that the said cheque/s is/are returned by the bank unpaid as there was **F016-REFER TO DRAWER** in the bank account of the accused wherefrom the accused had issued the said cheque and inspite of due service of demand notice and expiry of stipulated period of **15 days** the accused have failed and neglected to make payment of the sum covered by the aforesaid cheque.

- That it is crystal clear that even after the due receipt of the demand notice, the accused/s did neither comply with the notice nor did pay the said amount as demanded by the said notice even till date and thereby has invited the penal mischief of section 138 of the Negotiable Instruments Act.

- That the accused/s has committed offence punishable under section 138 of the Negotiable Instruments Act, 1881 as amended upto date.

- That the complainant states that no other complaint under the Negotiable Instruments Act has been filed in any other court in respect of the same transaction by the complainant.

- That this petition of complaint is being filed within one month from the date when the cause of action arose in the case within the jurisdiction of this Ld. Court.

In the circumstances it is humbly prayed that Your Honour would be graciously pleased to take cognizance of the offence under Section 138 of Negotiable Instrument Act, 1881 as amended upto date against the accused, be further pleased to issue process against the accused upon his appearance try and convict him in accordance with law and pass such further order or orders as this Ld. Court may deem fit and proper, in the interest of justice.

And for this act of kindness your petitioner as in duty bound shall ever pray.

LIST OF WITNESSES:

- Authorized representative of the Complainant Company.
- Others.

DOCUMENTS RELIED ON:

- Dishonored cheque/s.
- Pay in Slip, Bank Return memo/s.
- Copy of the Demand Notice.
- Copy of the Postal documents.
- Other documents.

Date: This 14th day of October 2026

FILED BY:

M/s Cholamandalam Investment and Finance Company LTD

ADVOCATE **AUTHORISED SIGNATORY**